1 / 7 · Discussing Dauchy’s Montesquieu

Thank you, Serge, and thank you, Arno. I would like to discuss two connected questions: how political liberty depends on the setting in which powers are exercised, and what happens when legal ideas move between settings. [PAUSE 2s]

Serge, your invitation to consider the Brazilian Civil Code of 1916 gives me a concrete starting point: article 6, which listed married women among the relatively incapable.

Following Arno’s suggestion, two images will accompany the argument. My question is how they make relationships of authority visible, including the relationship between the sexes that the Code organised. [CLICK]

2 / 7 · What sustains political liberty?

Serge, I would like to begin with your distinction between constitutional design and the historical conditions of liberty. The starting point is the relation between a constitutional arrangement and the conditions that sustain liberty. Separating governmental functions must be supported by civil and criminal laws and by institutions, above all judicial ones.

Your reading of the spirit of the laws makes that setting central: laws belong to particular histories and interact with religion, commerce and mores. [PAUSE 2s]

Montesquieu gives that setting a gendered form. In Book Seven he writes that in republics women are free by the laws and held captive by mores. The distinction between law and mores, which your reading puts at the centre, is where he places women.

Carole Pateman gives this question a critical edge. In The Sexual Contract, she argues that the familiar story of free and equal contracting individuals leaves a sexual contract out of view: an ordering of relations between women and men that helps constitute civil freedom itself. I use this as a critical question, rather than as evidence of Montesquieu’s influence in Brazil.

So I would ask whose liberty the setting sustains. When we look for the separation of powers historically, should we also look at how authority was distributed inside the household? [CLICK]

3 / 7 · Brazil: reception through adaptation

Your Brazilian discussion already complicates the idea of straightforward reproduction. You describe the circulation of Montesquieu’s writings and then the Constitution of 1824, with its four powers and its relationship to Benjamin Constant. [PAUSE 2s]

That example separates the circulation of a text, the appropriation of an argument and the construction of an institution. Each requires its own evidence, and a familiar vocabulary does not settle how authority was organised.

The same care applies to images. A conventional attribute cannot by itself tell us which author was read. [CLICK]

4 / 7 · Who is party to the constitutional relationship?

Aurélio de Figueiredo’s Compromisso Constitucional, painted in 1896, shows Deodoro’s constitutional oath of February 1891. Deodoro holds a book before the assembly; Prudente de Moraes, its president, occupies the centre. [LOOK 5s]

The relationship between the figures matters more than an emblem for each branch. Executive authority appears in the act of a commitment that article 44 of the 1891 Constitution prescribed, before powers that article 15 called harmonious and independent.

Look also at the gallery. Women are present as spectators, above the floor where the commitment is made. I read the composition as placing them outside the constitutional relationship it represents. That is an interpretation of the image; it does not document who attended the session. [PAUSE 2s]

Read with your argument, the scene needs its institutions and its society. It does not, by itself, prove a reception of Montesquieu. [CLICK]

5 / 7 · A woman’s figure before the Court

Arno also suggested the sword of Justice as a sign of judicial autonomy. Ceschiatti’s A Justiça, outside the Supreme Federal Court, lets us turn that suggestion into a question: what authorises the move from a sword to a claim about independence? [LOOK 5s]

Montesquieu wrote, in Book Eleven, that of the three powers, judging is in some fashion null. A stone figure before a permanent court makes that power far more visible.

The figure is a woman. She was placed before the Court in 1961. Until the following year, the Civil Code still counted married women among the relatively incapable; Law 4,121 of 1962 removed them from article 6. [PAUSE 2s]

I do not suggest that the sculptor commented on the Code. The juxtaposition is mine. It shows how a feminine figure can lend authority to an institution within a legal order that limited the capacity of actual women. Whether the sword speaks of independence has to be established through its historical use. [CLICK]

6 / 7 · Article 6 and the Civil Code of 1916

This brings us to your invitation. You suggest that the 1916 Code, drafted by Clóvis Beviláqua, probably illustrates hybridity, and you ask whether the transplant question was raised during its long preparation. Between Montesquieu’s warning and that question you place Watson, Legrand and the renegotiation of legal boundaries. [PAUSE 2s]

Article 6 offers one place to look. It declared married women relatively incapable while the conjugal society lasted. Beviláqua denied any mental inferiority; the restriction rested, he wrote, on the diversity of functions the spouses were called to perform. He described his draft as being as liberal as it was permitted to be.

This is a contextual argument, close in form to the one you draw from Montesquieu: law must suit its setting. Here it served to limit liberty. Beviláqua also surveyed foreign codes, noting which kept the incapacity and which did not, so the choice among models was itself made in the name of local mores.

The record is contested. A peer-reviewed study places the incapacity in his original draft; in 1937 Beviláqua wrote that it was an addition by the revising commission, accepted against his objections. I have not yet seen the draft itself, so I leave that point open. [CLICK]

7 / 7 · Two questions for Serge Dauchy

I would therefore put two questions to you, Serge. [PAUSE 2s]

First, when a rule is defended as suited to a people, does the argument from context circulate too? In 1916 the language of suitability justified keeping married women under their husbands’ direction. Does that count as resistance to transplantation, or as one of its forms? [PAUSE 3s]

Second, can a history of reception follow whose liberty the setting sustained? The women in the gallery of 1891 and the feminine Justice of 1961 belong to a legal order in which married women’s capacity was limited until 1962.

This is where I see legal iconography contributing to your discussion. Read with institutional and textual evidence, images show how authority is made visible, and for whom. Thank you. [STAY ON SLIDE]